IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
SPECIAL BENCH (COURT – II)

Item No. 204
(CAA)- 106/ND/2021

IN THE MATTER OF:
M/s. Communications & Power Industries India Pvt Ltd And CPI Satcom & Athenna Technologies Asia Pvt. Ltd. ... Applicant

Under Section: 230-232

Order delivered on 19.05.2022

CORAM:
SHRI DR. P. S. N. PRASAD
HON'BLE MEMBER (JUDICIAL)

SHRI L. N. GUPTA
HON'BLE MEMBER (TECHNICAL)

PRESENT:
Adv. Swechcha Mishra for RD
Rajat Jariwal, Shruti Khanijow, Saniya Mirani, for Khaitan & Co - for the Petitioner Companies.

ORDER

Heard the submissions made by the Ld. Counsel for the Petitioner. Proxy counsel for the RD is present and prays for grant of time for filing the reply. 10 days' time is granted for filing the report.

Proxy Counsel for OL has submitted that they have filed their report yesterday but the same is not reflected on the e-portal of the Tribunal. Therefore, the counsel is directed to take necessary steps to get the same uploaded on the e-portal of the Tribunal at the earliest.

No one is present on behalf of the Income Tax Dept. Therefore, let notice be served by the Petitioner upon the Income Tax Dept. again to appear and file their report.

The counsel for the petitioner is also directed to file last 3 years income tax returns relating to all the companies and also an affidavit cum undertaking that the Transferee Company will undertake to pay the liabilities on behalf of all the Transferor Companies, if any demand has been raised by the Income Tax Dept. as per law.

List this matter on 11th July, 2022.

-Sd-

(L. N. GUPTA)
MEMBER (T)

-Sd-

(P. S. N. PRASAD)
MEMBER (J)

(Sapna)